

**FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK  
AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE**

*If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"*

**FORECLOSURE ACTION SURPLUS MONIES FORM**

**SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:**

**COUNTY OF** NEW YORK

HILTON RESORTS CORPORATION,

Index No. 850077/2025

Plaintiff,

-against-

DENNIS HENRY GABRYSAK, LOUISE ANN  
GABRYSAK,

Defendant.

**MORTGAGED PROPERTY:**

HNY CLUB SUITES - PHASE I  
1335 Avenue of the Americas New York,  
NY

**COUNTY:** NEW YORK

**SBL #:** Section 4 Block 1006 Lot 1302

**Sale Date:** MAY 19, 2026

**A. To be completed by the Referee**

1. Final Judgment Amount per Judgment: \$ 92,021.31

2. Adjusted Judgment Amount (Upset Price): \$ 96,974.33

(This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)

3. Sale Price: \$ 10.00

(To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)

4. Surplus Amount (enter \$0.00 if no surplus) \$ 0.00

*\*\*If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the  
Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees  
earned in this matter:

\$ 1,100.00

Referee Name: SOFIA BALILE, ESQ.

Telephone: 646-580-6116 - 917-981-0849

Address: 155 WATER STREET SUITE 311 BROOKLYN, NY 11201

Email: sofia@balilelaw.com

Signature/Date:  5/19/2026

*\*If plaintiff is also the purchaser, complete both B. and C.*

**B. To be completed by Plaintiff's Rep.**

Name: CRUSER MITCHELL NOVITZ

Address: 341 CONKLIN STREET

FARMINGDALE, NY 11735

Telephone: 516-586-8513

Email: edorfman@cmlawfirm.com

Signature/Date:  5/19/26

**C. To Be Completed by Purchaser**

Name: CRUSER MITCHELL NOVITZ

Address: 341 CONKLIN STREET

FARMINGDALE, NY 11735

Telephone: 516-586-8513

Email: edorfman@cmlawfirm.com

Signature/Date:  5/19/26

Additional Copies of this Form can be found at <https://www.nycourts.gov/forms/foreclosure/>